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FEATURED

Retailers say they use Flock cameras, ALPRs responsibly. Privacy groups aren't buying it

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Some of the biggest retailers in the world say they are very careful in how they use, share and retain data they collect from automated license plate readers outside their stores. Businesses, including Home Depot, Lowe's, Costco, Target and Walmart, say they understand the importance of protecting people's privacy and will only use ALPRs for safety and security and to prevent and detect crime at their properties.

But some community members and privacy rights groups say retailers have been quietly deploying ALPRs with no meaningful public notice or feedback. They say there is no guaranteed oversight of commercial use of this powerful technology, and they worry the data that businesses collect can be accessed by outside agencies and third parties for controversial purposes, like immigration enforcement.

"Companies need to be able to clearly show how they are using the data, how they are accessing it and what they are doing with the data to protect the rights of the public," said Christina Méndez, executive director of the Dayton Hispanic Chamber of Commerce. "How do you use it for the protection of your business and your employees and your property while also protecting the essence of community?"

Privacy asks

The Dayton Daily News confirmed that Lowe's stores across southwest Ohio have ALPRs, and some Home Depot stores have ALPRs nearby. Records of Flock shared networks obtained by this news outlet indicate that Lowe's and Home Depot stores in the state provide at least some local police agencies with access to their stores' ALPR databases.

Shareholders of Home Depot and Lowe's last month considered and ultimately voted down separate proposals that called for the companies to issue new reports to try to evaluate potential data-sharing privacy risks, including from the use of ALPRs.

Casey Hudek, who spoke in favor of a privacy report proposal on behalf of the AFL-CIO reserve fund, said Lowe's voluntarily shares its ALPR data with various law enforcement agencies, and many state and local police agencies have agreements with Immigration and Customs Enforcement.

He said some of Lowe's customers, including citizens and legal immigrants, may be reluctant to patronize the company's stores because they fear that they may be racially profiled.

"We are concerned that our company's license plate reader data could be used for controversial immigration enforcement purposes," he said.



An automated license plate reader outside of a local Lowe's store. Cornelius Frolik Cornelius Frolik
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Lowe's board in a proxy statement said the company already has robust data privacy practices that protect customers and a new report would be unnecessary.

Proponents of a new privacy assessment for Home Depot said the company could face financial, legal and reputational risks if there was misuse or unauthorized use of the data collected by security technology. However, in a statement to shareholders, the Home Depot board of directors said the company already has strong internal policies and procedures that restrict ALPR use for authorized purposes by authorized parties.

“The company uses ALPR technology to protect the safety of customers and associates and to detect and prevent organized retail crime, and the company has seen significant benefits associated with these purposes since its initial deployment,” the board said.

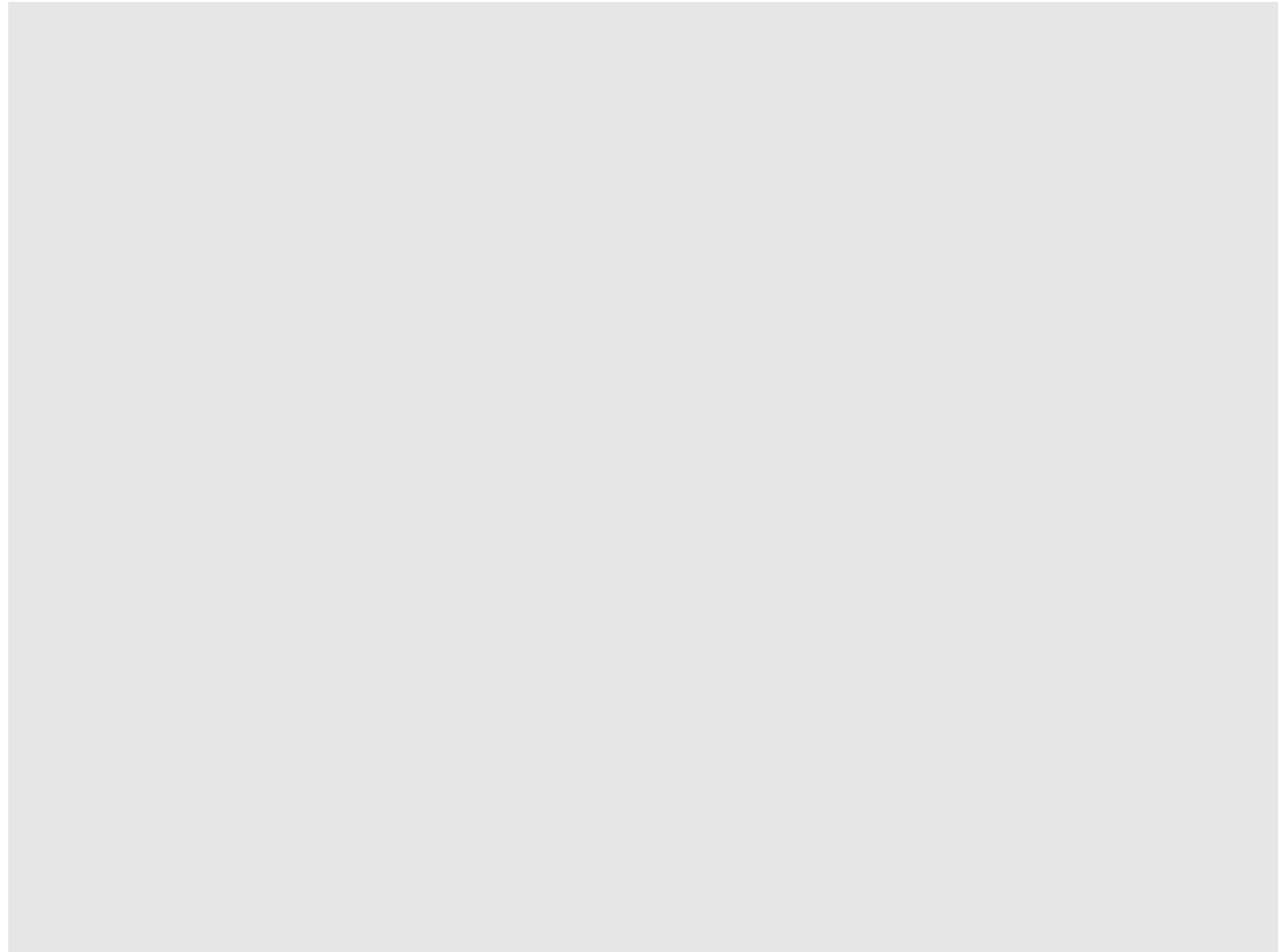
Teresa Wynn Roseborough, Home Depot’s executive vice president and general counsel, told shareholders that the company uses ALPRs to protect employees’ and customers’ safety and to detect and combat organized retail theft.

“We do not grant access to our license plate readers to federal law enforcement and we have not authorized any law enforcement agency other than local and state law enforcement agencies to access our ALPR data,” she said. “If one of these authorized agencies shared ALPR data with an unauthorized third party, it would violate our data-sharing agreement.”

What companies say

Companies that use ALPRS say they have privacy safeguards in place. Many publish privacy statements about security technology they utilize on their websites.

Target says access and use of ALPR systems is restricted to authorized users who receive special training about protecting confidential information. The company says it conducts periodic audits to review data accuracy, system access and retention.



Walmart promises that the company monitors ALPR systems for accuracy, and access is limited to authorized associates who have undergone training about data protection and privacy.

Costco says it restricts access to ALPR technology and information to “personnel with a need to know such information,” such as loss prevention and security staff and senior management. Costco also states that the company tries to ensure the accuracy and integrity of the information it collects through measures like access control and logs.

Meijer says its plate recognition systems are not used to track or monitor customers, and the company typically does not share any data with third parties.

Many retail chains — including Home Depot and Lowe’s — say they will not share ALPR data with third parties or allow outside access, except in limited circumstances, such as when they are cooperating with law enforcement investigations or to protect customers, employees or property.

Potential risks

Companies, understandably, are trying to combat theft and crime, and they may view ALPR systems as just another routine security equipment purchase, similar to investing in cybersecurity software, said Sarah Hamid, director of strategic campaigns for the Electronic Frontier Foundation, a nonprofit organization focused on privacy issues.

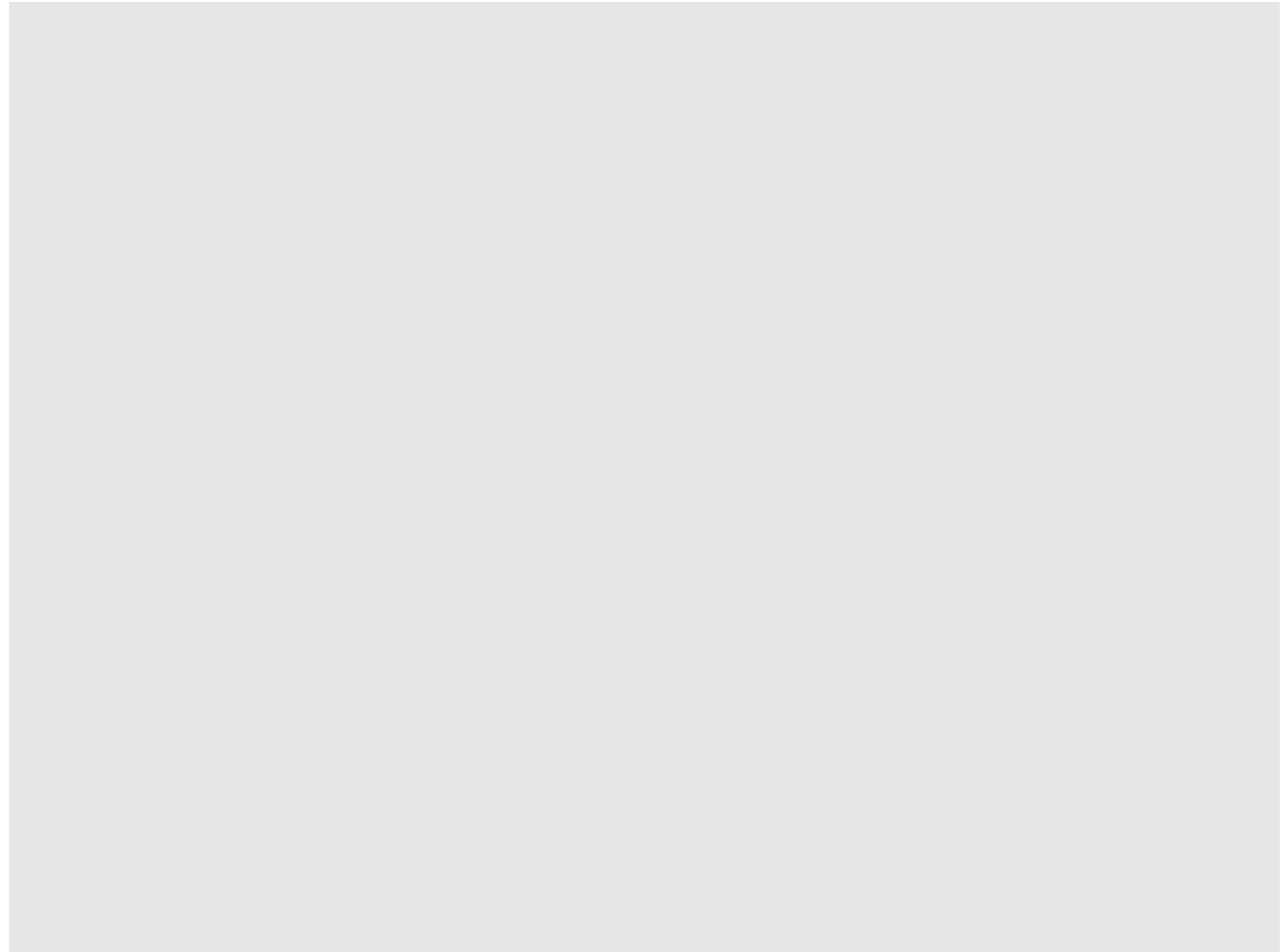
But Hamid said this is a mistake because this is not run-of-the-mill technology. She said ALPRs are capable of tracking people's movements in a very alarming and intrusive way.

Hamid said every vehicle that passes by a commercially owned ALPR is logged, and businesses can share this data with law enforcement agencies and other outside organizations that are connected through a massive network of camera systems.

Hamid said police agencies can search through these databases without a warrant for untold numbers of reasons, including immigration. Hamid said businesses may say they have policies to protect customers' privacy, but there is no way to truly know if oversight is actually taking place since most places have no regulations, like disclosure requirements or retention limits.

Hamid said retailers like Home Depot have been very resistant to disclosing their ALPR policies and have not approved or committed to third-party audits of these systems or other oversight measures.

"It could be that private retailers ... aren't even recognizing the risks that they are putting (on) their customers and the people who frequent their parking lots," she said. "This is not a low-stakes decision. Thinking through how you are going to protect the privacy of your customers is a business decision — it impacts your bottom line, it impacts your brand reputation and it impacts the safety of your customers."



A Home Depot spokesperson said in a statement that automated license plate reader cameras “are used for the purpose of detecting and preventing theft and protecting the safety of our customers and associates.” Home Depot has about 83 stores in Ohio.

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Méndez, with the Dayton Hispanic Chamber of Commerce, said companies should not be sharing ALPR data they collect with outside groups. In her view, that goes far beyond just protecting the company’s stores.

Méndez said community members are concerned that data businesses — and local governments — capture can wind up in the hands of ICE or other federal agencies.

Home Depot says it does not share its data with federal law enforcement. But ICE has agreements with local and state law enforcement agencies, which means that police potentially could perform searches on the federal agency’s behalf. Also, even if businesses do not share

their ALPR data with outside networks, they may still provide the data if they receive subpoenas or requests from law enforcement. Privacy statements of a variety of large retailers do not explicitly state that their ALPR data will not be shared with federal authorities.

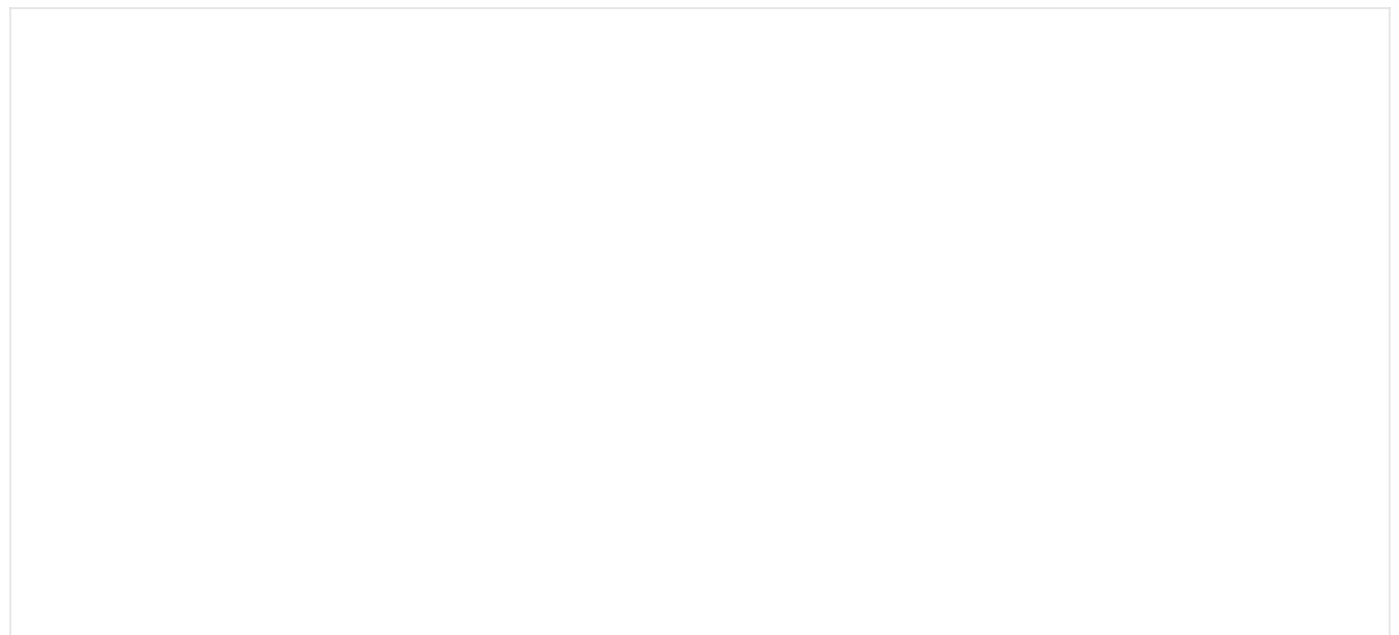
Privacy advocates say companies should set clear restrictions about how they use ALPR data and how long they keep the information. They say many retailers' current policies have vague prohibitions, that provide a lot of leeway.

Gary Daniels, legislative director for the ACLU of Ohio, said local and state laws are "desperately needed" to regulate ALPRs, such as restrictions on data-sharing by non-government organizations.

A small number of states restrict ALPR use by companies and private individuals. Arkansas prohibits partnerships, companies, associations or state agencies from using the technology, except for limited law enforcement uses, controlling access to secured areas or for parking enforcement. Maine does not allow private businesses or other non-public entities to use plate reader technology, except for very limited purposes.

Privacy rights groups also are calling on companies to agree to short data retention periods.

Walmart says it retains personal information collected by ALPRs for 60 days, unless the information is needed for legal proceedings or "other lawful purposes." Target says it generally retains data for 30 days; Lowe's says it typically keeps ALPR data for up to 90 days; and Costco says it keeps data up to about 180 days.





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